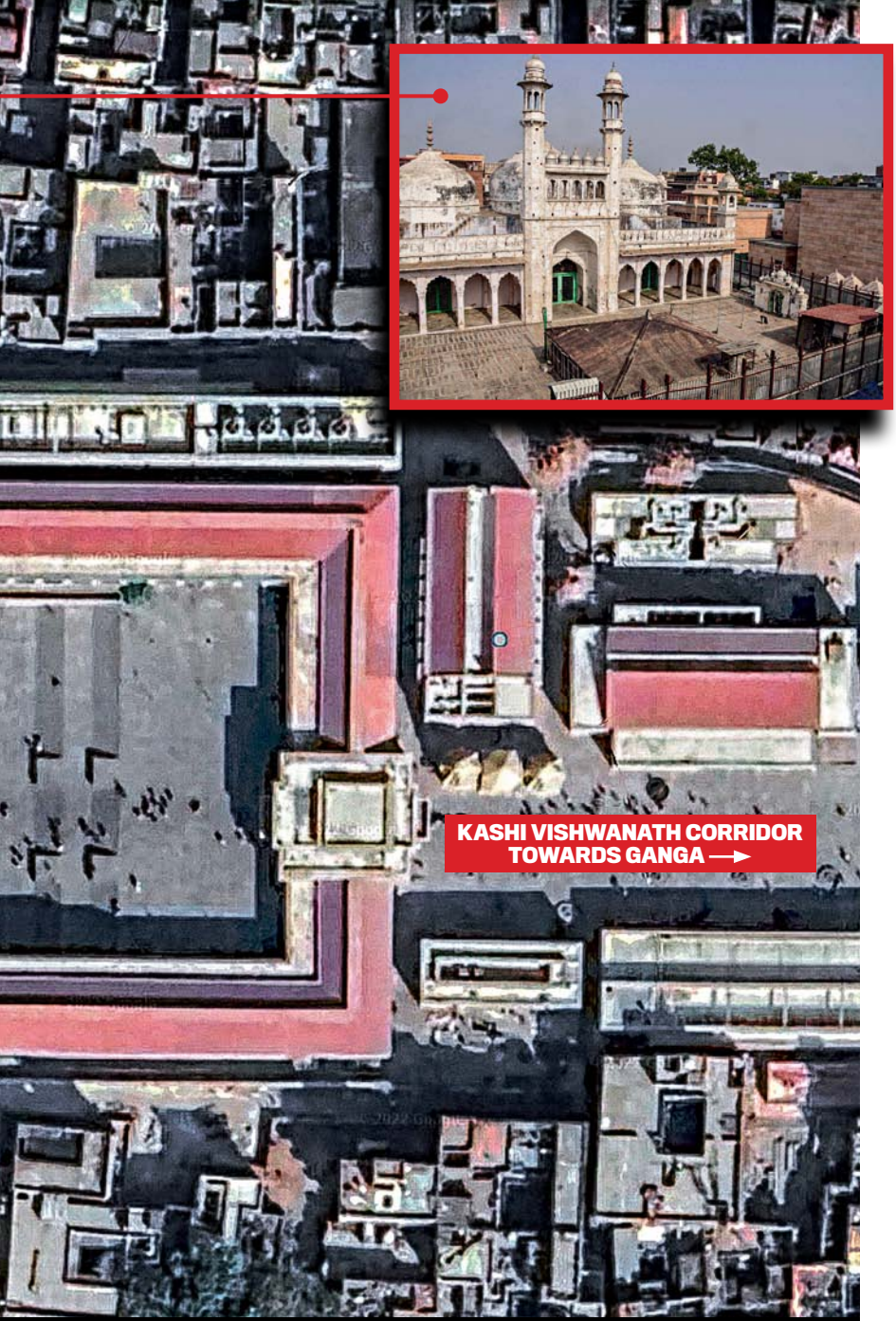


Five petitioners moved a Varanasi court on **August 18, 2021**, demanding they be allowed to worship not just the shrine of **Shringar Gauri** behind the Gyanvapi wall, but also all other "visible and invisible deities within the old temple complex". On April 26, 2022, the court ordered the Gyanvapi site be inspected. The survey was finally conducted on May 14-16.

On May 16, the survey threw up evidence of a *shivalinga*-like structure–also described as a fountain–in the mosque's *wazookhana*, a pond for ritual ablutions. Though the Varanasi court asked that the area be cordoned off until the survey report was submitted, the Supreme Court had on May 17 also started to hear a special leave petition filed by the Gyanvapi management committee. While it didn't order a stay on the survey's proceedings, it did allow for namaaz to be freely offered inside.

government at the peak of the Ram Janmabhoomi movement in 1991, the Act states that the religious character of all places of worship—barring Ayodhya, then under litigation—shall be maintained as it was on August 15, 1947. In November 2019, when a five-judge bench of the Supreme Court decided the Ayodhya title suit in favour of permitting the construction of a temple on the disputed site, it upheld the provisions of the 1991 Act, stating that, "In preserving the character of places of public worship, Parliament has mandated in no uncertain terms that history and its wrongs shall not be used as instruments to oppress the present and the future."

Even though there are before the Supreme Court two petitions challenging the Act on the ground that it bars judicial review, S.M. Yaseen, AIM's general secretary, says he would still choose law over history. "History is disjointed," he says. "You won't even find the right history of Gyanvapi anywhere. I believe in the status quo that the 1991 Place of Worship Act ensures." Advocate Tripathi, for his part, has a taunt ready. "If we have found a *shivalinga* there today, this means there was a *shivalinga* there in 1947. It was there in Aurangzeb's time as well. If you go and offer *namaaz* in a temple, does that make a temple a mosque? No, nor do domes. They are offering *namaaz* in a temple."

In 1936, when a certain Deen Mohammad had filed a civil suit before a Varanasi court, asking for the Gyanvapi complex to be declared a Waqf site, it was already an open question. When the court rejected Mohammad's petition, he appealed to the Allahabad High Court. In 1937, the HC ruled that the Gyanvapi mosque complex belonged to Muslims, and that they had the right to pray there, but it also went on to allot the basement of the mosque to the Vyas family. Interestingly, the *wazookhana*, a structure for ablutions in which the purported *shivalinga* has now been found, had in 1937 been accepted as a property of the mosque.

Advocate Abhay Yadav, who represents AIM in the Varanasi court, says he